should not be raised in this manner. If there be nothing more than a limitation to the parent for life, with a (reversionary) term to raise portions at the age of twenty-one or marriage, and the interests are vested and the contingencies have happened at which the portions are to be paid, the interest *is* payable and the portions *must be raised*, in the only manner in which they can be raised, that is, by mortgage or sale of the reversionary term" (*a*).

3. In Codrington *v.* Foley the term for raising the portions was reversionary upon another term, the trusts of which were unsatisfied: but in the case of Smyth *v.* Foley (*b*) it was reversionary upon the life estate of the father, and yet the same result followed.

Smyth *v.* Foley. — Thus an estate was limited by settlement upon marriage to R. Chambers for life, remainder to M. E. his wife for life in bar of dower, remainder to trustees for 500 years, remainder to the first and other sons successively in tail, and the trusts of the term were declared to be by sale or mortgage or other means to raise 4,000*l.* for the younger children, the portions "to be paid" at their respective ages of twenty-one years, and of daughters at those ages or marriage; and upon further trust "until the same portions should become payable as aforesaid, to raise a competent yearly sum out of the rents and profits," for maintenance and education, with a power "after the decease of Richard Chambers, or in his lifetime with his consent," to raise moneys for advancement. There were six children of the marriage, three sons and three daughters, all of whom attained twenty-one. After the death of M. E. Chambers the wife, but in the lifetime of R. Chambers, the younger children filed their bill to have the 4,000*l.* raised. Baron Alderson in giving judgment laid down the following rules: That *First*, where a term is limited in remainder to commence in possession after the death of the father, yet if the trust is to raise a portion payable at a fixed period, the child shall not wait for the death of the father before the portion is raised, but at the fixed period may compel a sale of the term (*c*).

(*a*) 6 Ves. 379.
(*b*) 3 Y. & C. 142.
(*c*) Sandys *v.* Sandys, 1 P. W. 707; Hellier *v.* Jones, 1 Eq. Ca. Ab. 337;